

SH01

Return of allotment of shares



Go online to file this information
www.gov.uk/companieshouse

☒ **What this form is for**
You may use this form to give
notice of shares allotted following
incorporation.

☐ **What this form is for**
You cannot use this form to give
notice of shares taken on formation of the company
for an allotment of shares by an unlimited company.

MONDAY



A08 02/10/2017 #4
COMPANIES HOUSE

1 Company details

Company number 09965297

Company name in full ALPHA FMC TOPCO LIMITED

→ **Filling in this form**
Please complete in typescript or in
bold black capitals.

All fields are mandatory unless
specified or indicated by *

2 Allotment dates ①

From Date d1 d8 m0 m9 y2 y0 y1 y7
To Date d d m m y y y y

① **Allotment date**
If all shares were allotted on the
same day enter that date in the
'from date' box. If shares were
allotted over a period of time,
complete both 'from date' and 'to
date' boxes.

3 Shares allotted

Please give details of the shares allotted, including bonus shares.
(Please use a continuation page if necessary.)

② **Currency**
If currency details are not
completed we will assume currency
is in pound sterling.

Currency ②	Class of shares (E.g. Ordinary/Preference etc.)	Number of shares allotted	Nominal value of each share	Amount paid (including share premium) on each share	Amount (if any) unpaid (including share premium) on each share
£	F SHARES	4451	0.00001	0.00001	NIL

If the allotted shares are fully or partly paid up otherwise than in cash, please
state the consideration for which the shares were allotted.

Continuation page
Please use a continuation page if
necessary.

Details of non-cash
consideration.

If a PLC, please attach
valuation report (if
appropriate)

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Return of allotment of shares

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Statement of capital

Complete the table(s) below to show the issued share capital at the date to which this return is made up.

Complete a separate table for each currency (if appropriate). For example, add pound sterling in 'Currency table A' and Euros in 'Currency table B'.

Please use a Statement of Capital continuation page if necessary.

Currency Complete a separate table for each currency	Class of shares E.g. Ordinary/Preference etc.	Number of shares	Aggregate nominal value (£, €, \$, etc) Number of shares issued multiplied by nominal value	Total aggregate amount unpaid, if any (£, €, \$, etc) Including both the nominal value and any share premium
Currency table A				
	SEE CONTINUATION PAGE			
Totals				
Currency table B				
Totals				
Currency table C				
Totals				
		Total number of shares	Total aggregate nominal value ❶	Total aggregate amount unpaid ❷
Totals (including continuation pages)				

❶ Please list total aggregate values in different currencies separately. For example: £100 + €100 + \$10 etc.

Return of allotment of shares

Statement of capital (prescribed particulars of rights attached to shares)

1 Prescribed particulars of rights attached to shares

- a particulars of any voting rights, including rights that arise only in certain circumstances;
- b particulars of any rights, as respects dividends, to participate in a distribution;
- c particulars of any rights, as respects capital, to participate in a distribution (including on winding up); and
- d whether the shares are to be redeemed or are liable to be redeemed at the option of the company or the shareholder.

Continuation page.
Please use a Statement of Capital
continuation page if necessary.

Prescribed particulars.

SEE CONTINUATION PAGES

Prescribed particulars

Prescribed particulars

Signature

Signature

Signature:

X

This form may be signed by:
Director ②, Secretary, Person authorised ①, Administrator, Administrative receiver,
Receiver, Receiver manager, CIC manager.

2 Societas Europaea

If the form is being filed on behalf of a *Societas Europaea* (SE) please delete 'director' and insert details of which organ of the SE the person signing has membership.

3 Person authorised

Under either section 270 or 274 of the Companies Act 2006.

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Return of allotment of shares

 Presenter information	
You do not have to give any contact information, but if you do it will help Companies House if there is a query on the form. The contact information you give will be visible to searchers of the public record.	
Contact name	JL5/CAE.005-0001
Company name	Squire Patton Boggs (UK) LLP
Address	7 Devonshire Square
Post town	London
County/Region	
Postcode	E C 2 M 4 Y H
Country	England
DX	136546 Bishopsgate 2
Telephone	+44 (0)20 7655 1000

 Checklist
We may return the forms completed incorrectly or with information missing.
Please make sure you have remembered the following:
☐ The company name and number match the information held on the public Register.
☐ You have shown the date(s) of allotment in section 2.
☐ You have completed all appropriate share details in section 3.
☐ You have completed the relevant sections of the statement of capital.
☐ You have signed the form.

 Important information
Please note that all information on this form will appear on the public record.
 Where to send
You may return this form to any Companies House address, however for expediency we advise you to return it to the appropriate address below:
For companies registered in England and Wales: The Registrar of Companies, Companies House, Crown Way, Cardiff, Wales, CF14 3UZ. DX 33050 Cardiff.
For companies registered in Scotland: The Registrar of Companies, Companies House, Fourth floor, Edinburgh Quay 2, 139 Fountainbridge, Edinburgh, Scotland, EH3 9FF. DX ED235 Edinburgh 1 or LP - 4 Edinburgh 2 (Legal Post).
For companies registered in Northern Ireland: The Registrar of Companies, Companies House, Second Floor, The Linenhall, 32-38 Linenhall Street, Belfast, Northern Ireland, BT2 8BG. DX 481 N.R. Belfast 1.
 Further information
For further information please see the guidance notes on the website at www.gov.uk/companieshouse or email enquiries@companieshouse.gov.uk
This form is available in an alternative format. Please visit the forms page on the website at www.gov.uk/companieshouse

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Statement of capital

Complete the table below to show the issued share capital.
Complete a separate table for each currency.

Currency Complete a separate table for each currency	Class of shares E.g. Ordinary/Preference etc.	Number of shares	Aggregate nominal value (£, €, \$, etc) Number of shares issued multiplied by nominal value	Total aggregate amount unpaid, if any (£, €, \$, etc) Including both the nominal value and any share premium
£	A SHARES	58898	0.58898	
£	B1 SHARES	9739	0.09739	
£	B2 SHARES	7120	0.07120	
£	F SHARES	4451	0.04451	
£	C1 SHARES	11064	0.11064	
£	C2 SHARES	5155	0.05155	
£	D SHARES	9	9.00	
£	PREFERENCE SHARES	1321281	6.606405	
Totals		1417717	16.570675	NIL

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Return of allotment of shares

5	Statement of capital (prescribed particulars of rights attached to shares)	
Class of share	A SHARES	
Prescribed particulars	(A) Subject to articles 7.1.4, 7.1.5 and 7.4 of the Company's articles and to any rights or restrictions for the time being attached to any class or classes of shares: - the A shares and the D shares (the "Voting Ordinary Shares") shall entitle any holder thereof to receive notice of, and to attend and speak, at any general meeting and on a poll each Voting Ordinary Share shall carry one vote; - the holders of the A shares (as a class) shall be entitled to cast 100% of the voting rights that are not capable of being cast by the holders of D shares pursuant to article 7.1.3(c) of the Company's articles and where there is more than one holder of A shares each holder shall be entitled to cast that proportion of the voting rights capable of being cast by holders of A shares that his holding of A shares bears to the total number of A shares in issue; In relation to any resolution proposed to remove any Director appointed pursuant to article 44 of the Company's articles, the A shares voting on such resolution shall carry such number of votes as is required to defeat the resolution. In addition to any other approval required by law or the Company's articles, those matters set out in Part 2 of the Schedule of the Company's articles shall require prior approval by A Shareholder Consent (as defined in the Company's articles). (B) Any profits which the Directors may lawfully determine to distribute in respect of any financial year shall be distributed amongst the holders of the A shares and the other classes of Equity Shares (as defined in the Company's articles) (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares. [Continues next page]	

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5	Statement of capital (prescribed particulars of rights attached to shares)	
Class of share	A SHARES (CONT)	
Prescribed particulars	(C) The (a) capital and assets of the Company on a winding-up or other return of capital available for distribution to the holders of shares or (b) proceeds of any Share Sale or of any Drag Sale (each as defined in the Company's articles) (as the case may be) in respect of the shares being sold (in either case after the payment of any sums due in respect of the preference shares pursuant to clause 23 of the Investment Agreement (as defined in the Company's articles) or article 7.2.2 or article 7.2.3 of the Company's articles (as the case may be)), shall be distributed/shared amongst (aa) in the case of article 7.1.2(a) of the Company's articles the holders of the Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares or (bb) in the case of article 7.1.2(b) of the Company's articles, the sellers of Equity Shares (in respect of the Equity Shares which they are selling only), pro rata according to the proportion of the total number of Equity Shares being sold by all such sellers in respect of the Share Sale or Drag Sale represented by the number of Equity Shares being sold by each such seller (and on the basis that such Equity Shares rank pari passu as if they constituted a single class of share). (D) Any shares may be issued on the terms that they are, or at the option of the Company or the holder are liable, to be redeemed and the Company's board (with Investor Director Consent (as defined in the Company's articles)) shall be authorised to determine the terms, conditions and manner of redemption of such shares.	

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5 Statement of capital (prescribed particulars of rights attached to shares)

Class of share	B1 SHARES
Prescribed particulars	(A) The holders of B1 shares shall be entitled to receive notice of, to attend but not speak or vote at any general meeting of the Company. If any act or omission of the Company requires a resolution of the members in general meeting and/or any class consent of the B1 shares in terms of the Companies Act 2006 Act (the "Action"), the following provisions shall apply: (i) If the Action requires approval under clause 8.5 of the Investment Agreement and such approval is obtained, each holder of Equity Shares (other than A shares), deferred shares and/or preference shares shall be deemed to have appointed as his attorney and agent any person nominated by the members representing A Shareholder Consent which person shall have the sole power and authority to exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him in his name and on his behalf in order to approve and implement the Action; (ii) If the Action does not require approval under clause 8.5 of the Investment Agreement, each holder of Equity Shares (other than A shares), deferred shares and/or preference shares shall be deemed to have appointed as his attorney and agent any person nominated by the members representing A Shareholder Consent which person shall have the sole power and authority to exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him in his name and on his behalf in order to approve and implement the Action, (B) Any profits which the Directors may lawfully determine to distribute in respect of any financial year shall be distributed amongst the holders of the B1 shares and the other classes of Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares.

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5 Statement of capital (prescribed particulars of rights attached to shares)

Class of share	B1 SHARES (CONT)
Prescribed particulars	(C) The (a) capital and assets of the Company on a winding-up or other return of capital available for distribution to the holders of shares or (b) proceeds of any Share Sale or of any Drag Sale (as the case may be) in respect of the shares being sold (in either case after the payment of any sums due in respect of the preference shares pursuant to clause 23 of the Investment Agreement or article 7.2.2 or article 7.2.3 of the Company's articles (as the case may be)), shall be distributed/shared amongst (aa) in the case of article 7.1.2(a) of the Company's articles the holders of the Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares or (bb) in the case of article 7.1.2(b) of the Company's articles, the sellers of Equity Shares (in respect of the Equity Shares which they are selling only), pro rata according to the proportion of the total number of Equity Shares being sold by all such sellers in respect of the Share Sale or Drag Sale represented by the number of Equity Shares being sold by each such seller (and on the basis that such Equity Shares rank pari passu as if they constituted a single class of share). (D) Any shares may be issued on the terms that they are, or at the option of the Company or the holder are liable, to be redeemed and the Company's board (with Investor Director Consent) shall be authorised to determine the terms, conditions and manner of redemption of such shares.

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Statement of capital (prescribed particulars of rights attached to shares)

Class of share	B2 SHARES
Prescribed particulars	(A) The holders of B2 shares shall be entitled to receive notice of, to attend but not speak or vote at any general meeting of the Company. If any act or omission of the Company requires a resolution of the members in general meeting and/or any class consent of the B2 shares in terms of the Companies Act 2006 Act (the "Action"), the following provisions shall apply: (i) If the Action requires approval under clause 8.5 of the Investment Agreement and such approval is obtained, each holder of Equity Shares (other than A shares), deferred shares and/or preference shares shall be deemed to have appointed as his attorney and agent any person nominated by the members representing A Shareholder Consent which person shall have the sole power and authority to exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him in his name and on his behalf in order to approve and implement the Action; (ii) If the Action does not require approval under clause 8.5 of the Investment Agreement, each holder of Equity Shares (other than A shares), deferred shares and/or preference shares shall be deemed to have appointed as his attorney and agent any person nominated by the members representing A Shareholder Consent which person shall have the sole power and authority to exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him in his name and on his behalf in order to approve and implement the Action. (B) Any profits which the Directors may lawfully determine to distribute in respect of any financial year shall be distributed amongst the holders of the B2 shares and the other classes of Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares.

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5	Statement of capital (prescribed particulars of rights attached to shares)	
Class of share	B2 SHARES (CONTINUED)	
Prescribed particulars	(C) The (a) capital and assets of the Company on a winding-up or other return of capital available for distribution to the holders of shares or (b) proceeds of any Share Sale or of any Drag Sale (as the case may be) in respect of the shares being sold (in either case after the payment of any sums due in respect of the preference shares pursuant to clause 23 of the Investment Agreement or article 7.2.2 or article 7.2.3 of the Company's articles (as the case may be)), shall be distributed/shared amongst (aa) in the case of article 7.1.2(a) of the Company's articles the holders of the Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares or (bb) in the case of article 7.1.2(b) of the Company's articles, the sellers of Equity Shares (in respect of the Equity Shares which they are selling only), pro rata according to the proportion of the total number of Equity Shares being sold by all such sellers in respect of the Share Sale or Drag Sale represented by the number of Equity Shares being sold by each such seller (and on the basis that such Equity Shares rank pari passu as if they constituted a single class of share). (D) Any shares may be issued on the terms that they are, or at the option of the Company or the holder are liable, to be redeemed and the Company's board (with Investor Director Consent) shall be authorised to determine the terms, conditions and manner of redemption of such shares.	

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Return of allotment of shares

5	Statement of capital (prescribed particulars of rights attached to shares)	
Class of share	F SHARES	
Prescribed particulars	(A) The holders of F shares shall be entitled to receive notice of, to attend but not speak or vote at any general meeting of the Company. If any act or omission of the Company requires a resolution of the members in general meeting and/or any class consent of the F shares in terms of the Companies Act 2006 Act (the "Action"), the following provisions shall apply: (i) If the Action requires approval under clause 8.5 of the Investment Agreement and such approval is obtained, each holder of Equity Shares (other than A shares), deferred shares and/or preference shares shall be deemed to have appointed as his attorney and agent any person nominated by the members representing A Shareholder Consent which person shall have the sole power and authority to exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him in his name and on his behalf in order to approve and implement the Action; (ii) If the Action does not require approval under clause 8.5 of the Investment Agreement, each holder of Equity Shares (other than A shares), deferred shares and/or preference shares shall be deemed to have appointed as his attorney and agent any person nominated by the members representing A Shareholder Consent which person shall have the sole power and authority to exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him in his name and on his behalf in order to approve and implement the Action, (B) Any profits which the Directors may lawfully determine to distribute in respect of any financial year shall be distributed amongst the holders of the F shares and the other classes of Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares.	

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Return of allotment of shares

5	Statement of capital (prescribed particulars of rights attached to shares)	
Class of share	F SHARES (CONTINUED)	
Prescribed particulars	(C) The (a) capital and assets of the Company on a winding-up or other return of capital available for distribution to the holders of shares or (b) proceeds of any Share Sale or of any Drag Sale (as the case may be) in respect of the shares being sold (in either case after the payment of any sums due in respect of the preference shares pursuant to clause 23 of the Investment Agreement or article 7.2.2 or article 7.2.3 of the Company's articles (as the case may be)), shall be distributed/shared amongst (aa) in the case of article 7.1.2(a) of the Company's articles the holders of the Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares or (bb) in the case of article 7.1.2(b) of the Company's articles, the sellers of Equity Shares (in respect of the Equity Shares which they are selling only), pro rata according to the proportion of the total number of Equity Shares being sold by all such sellers in respect of the Share Sale or Drag Sale represented by the number of Equity Shares being sold by each such seller (and on the basis that such Equity Shares rank pari passu as if they constituted a single class of share). (D) Any shares may be issued on the terms that they are, or at the option of the Company or the holder are liable, to be redeemed and the Company's board (with Investor Director Consent) shall be authorised to determine the terms, conditions and manner of redemption of such shares.	

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Return of allotment of shares

5 Statement of capital (prescribed particulars of rights attached to shares)

Class of share	C1 SHARES
Prescribed particulars	(A) The holders of C1 shares shall be entitled to receive notice of, to attend but not speak or vote at any general meeting of the Company. If any act or omission of the Company requires a resolution of the members in general meeting and/or any class consent of the C1 shares in terms of the Companies Act 2006 Act (the "Action"), the following provisions shall apply: (i) If the Action requires approval under clause 8.5 of the Investment Agreement and such approval is obtained, each holder of Equity Shares (other than A shares), deferred shares and/or preference shares shall be deemed to have appointed as his attorney and agent any person nominated by the members representing A Shareholder Consent which person shall have the sole power and authority to exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him in his name and on his behalf in order to approve and implement the Action; (ii) If the Action does not require approval under clause 8.5 of the Investment Agreement, each holder of Equity Shares (other than A shares), deferred shares and/or preference shares shall be deemed to have appointed as his attorney and agent any person nominated by the members representing A Shareholder Consent which person shall have the sole power and authority to exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him in his name and on his behalf in order to approve and implement the Action. (B) Any profits which the Directors may lawfully determine to distribute in respect of any financial year shall be distributed amongst the holders of the C1 shares and the other classes of Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares.

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Return of allotment of shares

5 Statement of capital (prescribed particulars of rights attached to shares)

Class of share	C1 SHARES (CONTINUED)
Prescribed particulars	(C) The (a) capital and assets of the Company on a winding-up or other return of capital available for distribution to the holders of shares or (b) proceeds of any Share Sale or of any Drag Sale (as the case may be) in respect of the shares being sold (in either case after the payment of any sums due in respect of the preference shares pursuant to clause 23 of the Investment Agreement or article 7.2.2 or article 7.2.3 of the Company's articles (as the case may be)), shall be distributed/shared amongst (aa) in the case of article 7.1.2(a) of the Company's articles the holders of the Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares or (bb) in the case of article 7.1.2(b) of the Company's articles, the sellers of Equity Shares (in respect of the Equity Shares which they are selling only), pro rata according to the proportion of the total number of Equity Shares being sold by all such sellers in respect of the Share Sale or Drag Sale represented by the number of Equity Shares being sold by each such seller (and on the basis that such Equity Shares rank pari passu as if they constituted a single class of share). (D) Any shares may be issued on the terms that they are, or at the option of the Company or the holder are liable, to be redeemed and the Company's board (with Investor Director Consent) shall be authorised to determine the terms, conditions and manner of redemption of such shares.

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Return of allotment of shares

5	Statement of capital (prescribed particulars of rights attached to shares)	
Class of share	C2 SHARES	
Prescribed particulars	(A) The holders of C2 shares shall be entitled to receive notice of, to attend but not speak or vote at any general meeting of the Company. If any act or omission of the Company requires a resolution of the members in general meeting and/or any class consent of the C2 shares in terms of the Companies Act 2006 Act (the "Action"), the following provisions shall apply: (i) If the Action requires approval under clause 8.5 of the Investment Agreement and such approval is obtained, each holder of Equity Shares (other than A shares), deferred shares and/or preference shares shall be deemed to have appointed as his attorney and agent any person nominated by the members representing A Shareholder Consent which person shall have the sole power and authority to exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him in his name and on his behalf in order to approve and implement the Action; (ii) If the Action does not require approval under clause 8.5 of the Investment Agreement, each holder of Equity Shares (other than A shares), deferred shares and/or preference shares shall be deemed to have appointed as his attorney and agent any person nominated by the members representing A Shareholder Consent which person shall have the sole power and authority to exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him in his name and on his behalf in order to approve and implement the Action. (B) Any profits which the Directors may lawfully determine to distribute in respect of any financial year shall be distributed amongst the holders of the C2 shares and the other classes of Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares.	
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Return of allotment of shares

5	Statement of capital (prescribed particulars of rights attached to shares)	
Class of share	C2 SHARES (CONTINUED)	
Prescribed particulars	(C) The (a) capital and assets of the Company on a winding-up or other return of capital available for distribution to the holders of shares or (b) proceeds of any Share Sale or of any Drag Sale (as the case may be) in respect of the shares being sold (in either case after the payment of any sums due in respect of the preference shares pursuant to clause 23 of the Investment Agreement or article 7.2.2 or article 7.2.3 of the Company's articles (as the case may be)), shall be distributed/shared amongst (aa) in the case of article 7.1.2(a) of the Company's articles the holders of the Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares or (bb) in the case of article 7.1.2(b) of the Company's articles, the sellers of Equity Shares (in respect of the Equity Shares which they are selling only), pro rata according to the proportion of the total number of Equity Shares being sold by all such sellers in respect of the Share Sale or Drag Sale represented by the number of Equity Shares being sold by each such seller (and on the basis that such Equity Shares rank pari passu as if they constituted a single class of share). (D) Any shares may be issued on the terms that they are, or at the option of the Company or the holder are liable, to be redeemed and the Company's board (with Investor Director Consent) shall be authorised to determine the terms, conditions and manner of redemption of such shares.	

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Return of allotment of shares

5	Statement of capital (prescribed particulars of rights attached to shares)	
Class of share	D SHARES	
Prescribed particulars	(A) Subject to articles 7.1.4, 7.1.5 and 7.4 of the Company's articles and to any rights or restrictions for the time being attached to any class or classes of shares: - the A shares and the D shares (the "Voting Ordinary Shares") shall entitle any holder thereof to receive notice of, and to attend and speak, at any general meeting and on a poll each Voting Ordinary Share shall carry one vote; - the holders of the D shares (as a class) shall be entitled to cast 45% of the total number of voting rights capable of being cast by all holders of Voting Ordinary Shares and where there is more than one holder of D shares the voting rights capable of being cast by the holders of the D shares shall be divided equally amongst all holders of the D Shares in issue. If any act or omission of the Company requires a resolution of the members in general meeting and/or any class consent of the D shares (provided always that the provisions of article 7.1.5(b) of the Company's articles shall only apply in relation to the D shares in the event that article 7.1.6(b) of the Company's articles applies) in terms of the Companies Act 2006 Act (the "Action"), the following provisions shall apply: (i) If the Action requires approval under clause 8.5 of the Investment Agreement and such approval is obtained, each holder of Equity Shares (other than A shares), deferred shares and/or preference shares shall be deemed to have appointed as his attorney and agent any person nominated by the members representing A Shareholder Consent which person shall have the sole power and authority to exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him in his name and on his behalf in order to approve and implement the Action; [Continues next page]	

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Return of allotment of shares

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Statement of capital (prescribed particulars of rights attached to shares)

Class of share	D SHARES (CONTINUED)	
Prescribed particulars	(ii) If the Action does not require approval under clause 8.5 of the Investment Agreement, each holder of Equity Shares (other than A shares), deferred shares and/or preference shares shall be deemed to have appointed as his attorney and agent any person nominated by the members representing A Shareholder Consent which person shall have the sole power and authority to exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him in his name and on his behalf in order to approve and implement the Action. The only acts or omissions of the Company which will require a class consent of the D shares shall be as set out in Schedule Part 7D (Part A) of the Investment Agreement, and such class consent of the D shares may be given by the holders of a majority of the D shares then in issue (excluding any D shares in which any Leaver and/or any Permitted Transferee of any such Leaver holds any interest or to which article 7.4 of the Company's articles applies). If Leavers and/or Permitted Transferees of any Leaver hold interests in all of the D shares or if article 7.4 of the Company's article applies to all of the D shares, article 7.1.6(a) of the Company's articles shall not apply and instead article 7.1.5(b) of the Company's articles shall apply in respect of the D shares. (B) Any profits which the Directors may lawfully determine to distribute in respect of any financial year shall be distributed amongst the holders of the D shares and the other classes of Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares. [Continues next page]	

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Return of allotment of shares

5	Statement of capital (prescribed particulars of rights attached to shares)	
Class of share	D SHARES (CONTINUED)	
Prescribed particulars	(C) The (a) capital and assets of the Company on a winding-up or other return of capital available for distribution to the holders of shares or (b) proceeds of any Share Sale or of any Drag Sale (as the case may be) in respect of the shares being sold (in either case after the payment of any sums due in respect of the preference shares pursuant to clause 23 of the Investment Agreement or article 7.2.2 or article 7.2.3 of the Company's articles (as the case may be)), shall be distributed/shared amongst (aa) in the case of article 7.1.2(a) of the Company's articles the holders of the Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares or (bb) in the case of article 7.1.2(b) of the Company's articles, the sellers of Equity Shares (in respect of the Equity Shares which they are selling only), pro rata according to the proportion of the total number of Equity Shares being sold by all such sellers in respect of the Share Sale or Drag Sale represented by the number of Equity Shares being sold by each such seller (and on the basis that such Equity Shares rank pari passu as if they constituted a single class of share. (D) Any shares may be issued on the terms that they are, or at the option of the Company or the holder are liable, to be redeemed and the Company's board (with Investor Director Consent) shall be authorised to determine the terms, conditions and manner of redemption of such shares.	

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Return of allotment of shares

5 Statement of capital (prescribed particulars of rights attached to shares)

Class of share	PREFERENCE SHARES
Prescribed particulars	(A) Preference shares shall not entitle the holder thereof to attend or vote at any general meeting of the Company. (B) No dividend may be paid in respect of any preference share. (C) Other than in the event that clause 23 of the Investment Agreement applies, in a winding-up of the Company from the assets of the Company available to the holders of shares the holders of preference shares (in respect of their preference shares only) shall (subject always to article 7.2.11 of the Company's articles) receive in priority to any payment in respect of any other share an amount per preference share equal to (i) £1 (the "Principal Value") plus (ii) a sum equal to 8% per annum which shall be deemed to accrue on the Outstanding Value (as defined below) from day to day on the basis of a 365 day year (or a 366 day year in the case of a leap year) from the date of issue of the preference share until the earliest of (and including) the date of redemption of the relevant preference share and the date of winding-up of the Company. The Premium (if any) which has accrued as at each anniversary of the date of adoption of the Company's articles will be compounded with the Principal Value outstanding immediately following such anniversary (and such Principal Value plus any such compounded sums from time to time shall be the "Outstanding Value"). The total sum calculated under (ii) (including any compounded sums (but excluding the Principal Value)) shall be deemed to be the "Premium" for the purpose of the Company's articles. Upon payment of the amounts referred to in article 7.2.2 of the Company's articles, the preference shares shall not be entitled to any further amount of capital or distribution. If the assets of the Company available to shareholders are less than the amount which would be due to all preference shares under the foregoing provisions of this article 7.2.2 of the Company's articles (the "Preference Proceeds"), those Preference Proceeds will be distributed in accordance with clause 23 of the Investment Agreement. [Continues next page]

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Return of allotment of shares

5	Statement of capital (prescribed particulars of rights attached to shares)	
Class of share	PREFERENCE SHARES (CONTINUED)	
Prescribed particulars	In the event of a Share Sale or a Drag Sale (other than in the event that clause 23 of Investment Agreement applies), the holders of preference shares (in respect only of the preference shares which they are selling) shall (subject always to article 7.2.11 of the Company's articles) receive from the proceeds of the Share Sale or the Drag Sale available in respect of the shares being sold in priority to any other share an amount per Preference Share equal to the Principal Value plus the Premium (to be calculated up to (and including) the date of completion of the Share Sale or Drag Sale) and shall not be entitled to any further participation in the proceeds of the Share Sale or the Drag Sale. If the proceeds of the Share Sale or the Drag Sale available in respect of the share being sold are less than the amount which would be due under the foregoing provisions of article 7.2.3 of the Company's articles in respect of the preference shares which are being sold (the "Preference Proceeds"), those Preference Proceeds will be distributed in accordance with clause 23 of the Investment Agreement. For the avoidance of any doubt, subject always to article 7.2.11 of the Company's articles, the only value which a preference share shall be entitled to upon its realisation shall be (and shall not exceed) the amount determined and payable in accordance with and pursuant to the foregoing provisions of articles 7.2.3 or 7.2.6-7.2.10 or 40 or 41.3-41.4 or 42.4-42.6 or 43.7-43.11 of the Company's articles. Subject to clause 23 of the Investment Agreement (if applicable), as between the holders of preference shares, the assets or proceeds due to them, under article 7.2.2 or 7.2.3 of the Company's articles (as the case may be) shall be allocated across all of the relevant preference shares pari passu and pro rata to the number of preference shares held by each holder. [Continues next page]	

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Return of allotment of shares

5 Statement of capital (prescribed particulars of rights attached to shares)

Class of share	PREFERENCE SHARES (CONTINUED)
Prescribed particulars	(D) Subject to the Companies Act 2006 and of every other statute for the time being in force concerning companies and affecting the Company, the Relevant Preference Shares (as defined in the Company's articles) shall be redeemed in full on the Loan Note Repayment Date (as defined in the Company's articles) by the Company giving notice of the redemption to the relevant holder(s) of preference shares (the "Redemption Notice"). Those shares shall be redeemed immediately following the issue of the Redemption Notice(s) by the Company (the "Redemption Date"). On the Redemption Date, subject always to article 7.2.11 of the Company's articles, the Company shall pay in respect of each Relevant Preference Share the Principal Value plus the Premium (to be calculated up to (and including) the Redemption Date). On any Redemption Date the Company shall pay to each registered holder of Relevant Preference Shares the amount payable in respect of such redemption. On receipt of that amount, each such holder shall surrender to the Company the certificate for the shares that are to be redeemed (or an indemnity in a form reasonably satisfactory to the Company's board in respect of any lost share certificate) to be cancelled. If any certificate (or indemnity) so surrendered includes any shares that are not redeemable at that time, the Company shall issue a new share certificate for the balance of the shares not redeemable to the holder. If there is more than one holder of Relevant Preference Shares, any redemption shall be made among such holders pro rata (as nearly as possible) to their respective holdings of preference shares. If, on any Redemption Date, the Company is prohibited from redeeming some or all of the Relevant Preference Shares then due to be redeemed, the Company shall redeem such number of Relevant Preference Shares as it is lawfully able to redeem. If there is more than one holder whose preference shares are due to be redeemed, those Relevant Preference Shares shall be redeemed in proportion as nearly as possible to their existing holdings of preference shares and the Company shall redeem the balance of those shares as soon as practicable. [Continues next page]

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Return of allotment of shares

5 Statement of capital (prescribed particulars of rights attached to shares)		
Class of share	PREFERENCE SHARES (CONTINUED)	
Prescribed particulars	For so long as the Company is prohibited from redeeming Relevant Preference Shares, and some or all of the Relevant Preference Shares have not been redeemed, the Premium thereon (other than in respect of any preference shares to which the definition of Preference Share Leaver Date (as defined in the Company's articles) apply) shall continue to accrue down to and including the date on which such shares are actually redeemed. If the Company fails to make any partial redemption of Relevant Preference Shares, then subsequent redemptions of preference shares shall be deemed to be of those preference shares that first became due for redemption.	